

STATE OF MICHIGAN
Muskegon 14th Circuit Court-Family Division
990 Terrace Street, Ste. 300
Muskegon, MI 49442
(231) 724-6421

Case/File No. _____

OBJECTION TO *RECOMMENDATION AND ORDER* *BY FOC REGARDING PARENTING TIME*

PLAINTIFF'S:

DEFENDANT'S:

(Name)

(Name)

(Address)

(Address)

()
(Phone Number)

()
(Phone Number)

(Email)

(Email)

I object to the entry of the *Recommendation and Order* mailed on (date) _____ and request a review by the Court.

***I object *only* to the following specific parenting time issues addressed in the Recommendation:**

***I am objecting for the following reason(s):**

Date: _____


(Sign name)

(Print name)

PROOF OF SERVICE/CERTIFICATE OF MAILING

I certify that on this date I served a copy of my *Objection to Recommendation and Order By FOC Regarding Parenting Time* & this *Proof of Service/Certificate of Mailing* on the parties or their attorneys by first-class mail to their last known addresses as defined in MCR 3.203.

Date served/mailed: _____



(Signature of Objecting Party)

(Printed name of Objecting Party)

**STATE OF MICHIGAN IN THE CIRCUIT COURT FOR THE COUNTY OF
MUSKEGON FAMILY DIVISION** 990 Terrace St Ste 300 Muskegon, MI, 49442 231-724-6421

ANDREW J. PIGORS, Plaintiff,

v.

EMILY WATSON, Defendant. _____/

Case No: 2024-001507-DC

Hon. Jenny L. McNeill

OBJECTION TO FRIEND OF THE COURT RECOMMENDATION REGARDING PARENTING TIME

(MCR 3.215(E)(4); FOC Recommendation Dated: March 28, 2025)

NOW COMES Plaintiff, ANDREW J. PIGORS, in pro per, and pursuant to MCR 3.215(E), hereby files this Objection to the Friend of the Court's Parenting Time Recommendation and states as follows:

I. INTRODUCTION

Plaintiff files this formal objection pursuant to MCR 3.215(E)(4), objecting in full to the Friend of the Court's parenting time recommendation dated March 28, 2025, on both factual and procedural grounds. The recommendation fails to comply with the best interest factors under MCL 722.23 and omits crucial evidence that was timely and properly submitted by Plaintiff.

This recommendation disregards MCL 722.23(c), (d), (j), and (k), which emphasize the emotional health, co-parenting capacity, and willingness of each parent to foster love, stability, and connection. Defendant's conduct undermines all of these.

II. GROUNDS FOR OBJECTION

A. Failure to Consider Established Custodial Environment (ECE)

- Plaintiff has maintained a stable and continuous parenting relationship with the minor child and exercises consistent bi-weekend parenting time.
- ECE is supported by over years worth of parenting logs, photos, and documented overnight care.

B. Denial of Equal Parenting Time Without Justification

- The recommendation assigns Plaintiff fewer than 80 hours/month.
- The reduction lacks safety-based justification and ignores documented emotional bonding, routine, and structure provided by Plaintiff.

C. Exclusion of Key Evidence and Exhibits

- FOC failed to consider over 50 pages of journals, photos, communication logs, and parenting schedules.
- MCR 3.215(E)(4) requires that all submitted evidence be reviewed; failure to do so is procedural error.

D. Improper Weight Given to False Allegations

- Over 20 unsubstantiated claims were made by Defendant, including poisoning, stalking, and instability.
- None resulted in charges. Police reports affirm no wrongdoing.

E. Alienation and Obstruction by Defendant

- Defendant blocked Plaintiff from Corewell Health access.
- Refused communication during her parenting time.
- Involved third parties (family) in obstructing custody exchanges.

F. Plaintiff's Home Is Safe and Stable

- Photos, inspection documents, and videos prove an enriching and clean home.
- Renovated space includes educational toys, books, bikes, chalkboards, and discipline teaching environments.

G. Developmental Concerns and Neglect of Child's Emotional Health

- Lincoln displays separation anxiety and emotional distress tied to Defendant's actions.
- Requests for collaboration to address this were ignored.

H. Violation of MCL 722.23(j) and (k)

- Defendant's behavior obstructs the bond between child and father.
- Violates legal mandates to foster affection and guidance.

III. INCORPORATED EXHIBITS

Exhibit A: Police Reports (2023-06948, 2023-07656, 2023-08121) disproving allegations.

Exhibit B: AppClose communication logs showing Plaintiff's calm, child-focused messaging.

Exhibit C: Parenting Journals (Nov 2023–Mar 2025) with meals, sleep, learning routines.

Exhibit D: Photos of child's bedroom and learning space showing safety and nurturing.

Exhibit E: Documentation of health access denial and missed dentist appointments.

Exhibit F: Surveillance footage of Cody Watson stalking Plaintiff's residence.

Exhibit G: Messages from AppClose showing Plaintiff's repeated attempts to schedule medical and dental appointments, and Defendant's refusal to coordinate, obstructing collaborative care.

IV. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that the Court:

- A. Reject the Friend of the Court's Parenting Time Recommendation dated March 28, 2025;
- B. Order an evidentiary hearing to properly assess the best interest factors under MCL 722.23;
- C. Grant a de novo hearing before the Court to allow Plaintiff to present all excluded evidence and testimony;
- D. Adopt Plaintiff's proposed parenting time schedule, with expanded weekends, holiday rotation, and mid-week virtual visits;
- E. Sanction Defendant for obstruction and false statements under oath;
- F. Grant any other relief deemed just and equitable.

Respectfully submitted,

/s/ Andrew J. Pigors

Andrew J. Pigors

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(231) 903-5690

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STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION
990 Terrace St Ste 300
Muskegon, MI, 49442
231-724-6421

ANDREW J. PIGORS,
Plaintiff,

v.

EMILY WATSON,
Defendant.

_____/

Case No: 2024-001507-DC
Hon. Jenny L. McNeill

**PROPOSED ORDER REJECTING FRIEND OF THE COURT PARENTING
TIME RECOMMENDATION**

At a session of said Court held at the Muskegon County Hall of Justice,

Located at 990 Terrace Street, Muskegon, Michigan on the ____ day of _____, 2025.

PRESENT: **Honorable Jenny L. McNeill**, Presiding Family Division Judge

This matter having come before the Court on Plaintiff Andrew J. Pigors' **Objection to the Friend of the Court's Parenting Time Recommendation dated March 28, 2025**, filed pursuant to **MCR 3.215(E)(4)**, and the Court having reviewed the objection, the exhibits submitted therewith, and being otherwise fully advised in the premises, including the statutory mandates under **MCL 722.23**, and the procedural requirements under **MCR 3.215(F)** and **MCL 722.27**:

IT IS HEREBY ORDERED that:

1.The **Friend of the Court's Parenting Time Recommendation dated March 28, 2025, is REJECTED** in its entirety.

2.This matter is set for a **de novo evidentiary hearing** before this Court to conduct a full, independent review of the facts and statutory best interest factors pursuant to **MCL 722.23, MCL 722.27, and MCR 3.215(F)**. All evidence previously submitted and omitted shall be entered into the record.

3.The parties are **ordered to appear** for the evidentiary hearing on the ____ day of _____, 2025, at _____ a.m./p.m., at the Muskegon County Hall of Justice, before the Honorable Jenny L. McNeill.

4.The Friend of the Court shall **submit no further recommendations** related to parenting time in this matter until this Court has issued a ruling following the de novo hearing.

5.Defendant is **prohibited from interfering** with Plaintiff's access to Lincoln David Watson's healthcare, educational, and developmental information. Defendant shall immediately restore or provide full access to the Corewell Health portal and all medical, dental, and developmental records.

6.Any violations of this Order may result in further **sanctions**, including but not limited to findings of contempt, make-up parenting time, and attorney fees.

7.Any future Friend of the Court recommendations related to custody or parenting time must contain a **written rationale** explicitly addressing each applicable best interest factor under **MCL 722.23**, and must certify that **all submitted evidence** was reviewed pursuant to **MCR 3.215(E)(4)**.

8.The Court hereby affirms Plaintiff's ongoing **Established Custodial Environment (ECE)**. No reduction in Plaintiff's parenting time shall occur without a finding of proper cause or change in

circumstances and a determination by **clear and convincing evidence** that such reduction is in the child's best interests under **MCL 722.27(1)(c)** and **Vodvarka v. Grasmeyer**, 259 Mich App 499 (2003).

IT IS SO ORDERED.

Hon. Jenny L. McNeill

Circuit Court Judge

Prepared and Submitted By:

/s/ Andrew J. Pigors
Andrew J. Pigors
1977 Whitehall Rd Lot 17
Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

CERTIFICATE OF SERVICE

I, Andrew J. Pigors, certify that I am unable to personally serve Defendant due to the terms of a Personal Protection Order. Therefore, I request that service of this Proposed Order be effectuated through the Court Clerk, Friend of the Court, or other process permitted by Michigan Court Rules.

I will submit the original to the Court Clerk and request assistance with lawful service under MCR 2.105 and MCR 3.203.

Date: 04/10/2025

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION
990 Terrace St Ste 300
Muskegon, MI, 49442
231-724-6421

ANDREW J. PIGORS,
Plaintiff,

v.

EMILY WATSON,
Defendant.

_____/

Case No: 2024-001507-DC
Hon. Jenny L. McNeill

PLAINTIFF'S BRIEF IN SUPPORT OF DE NOVO HEARING (MCR 3.215(E)(4); MCR 3.215(F); MCL 722.23 & 722.27)

NOW COMES Plaintiff, ANDREW J. PIGORS, in pro per, and files this Brief in Support of his Objection to the Friend of the Court Parenting Time Recommendation dated March 28, 2025, and in furtherance of his request for a de novo hearing pursuant to MCR 3.215(E)(4) and MCR 3.215(F). This Brief is submitted to assist the Court in evaluating why the Recommendation must be rejected and a new evidentiary record created.

I. PROCEDURAL CONTEXT

1. On March 28, 2025, the Friend of the Court issued a Parenting Time Recommendation.
2. Plaintiff timely filed a formal objection under MCR 3.215(E)(4).
3. MCR 3.215(F) mandates that the Court conduct a **de novo hearing** upon objection.
4. MCL 722.27 requires that the best interest of the child be independently evaluated whenever parenting time or custody is in dispute.

II. LEGAL STANDARD

A. MCR 3.215(E)(4) and (F)

Upon objection, the circuit court must conduct a de novo hearing. The hearing must allow the judge to make an independent determination based on the law and facts. The Court is not bound by the FOC's findings and must weigh all evidence anew.

B. MCL 722.23 - Best Interest Factors

Courts are required to make custody and parenting time determinations based on the statutory best interest factors, which include but are not limited to: emotional ties (a), stability of the environment (d), willingness to foster relationships (j), and presence of domestic conflict (k).

C. Vodvarka v. Grasmeyer, 259 Mich App 499 (2003)

Clarifies that any modification to custody or ECE must be supported by clear and convincing evidence, particularly if a change would disrupt the child's established custodial environment.

III. BASIS FOR REJECTION OF FOC RECOMMENDATION

A. Omission of Plaintiff's Evidence

- Over 50 pages of parenting journals, communication logs, and home environment documentation were submitted and omitted.
- This violates MCR 3.215(E)(4), which requires consideration of all submitted material.

B. Ignoring Established Custodial Environment

- Plaintiff is currently restricted to parenting time only every other weekend, totaling approximately 4 days per month.
- This severe limitation is in direct contrast to the prior 50/50 parenting arrangement under which the child experienced a stable, consistent presence from both parents.
- The dramatic reduction in time occurred without proper cause or change in circumstances and without a full evidentiary hearing, thereby undermining the established custodial environment.
- Plaintiff maintains records, journals, and digital communication logs evidencing consistent parenting efforts during and prior to the current limited schedule.
- Under MCL 722.27(1)(c), any interference with an established custodial environment must be justified by clear and convincing evidence—none of which has been presented in this matter.
- Evidence establishes a functioning ECE under MCL 722.27(1)(c), requiring heightened scrutiny.

C. Improper Weight Given to Unsubstantiated Allegations

- Defendant has submitted 20+ unsubstantiated accusations, including mental instability, drug use, and stalking.
- Police reports show no criminal conduct or CPS intervention.

D. Failure to Address Alienation

- Defendant has obstructed portal access, medical transparency, and refused to engage in meaningful co-parenting.
- This violates MCL 722.23(j) and (k), both of which weigh heavily against her continued gatekeeping.
- This pattern of behavior meets the criteria of **psychological abuse and coercive control**, as recognized by experts in family law and trauma psychology, and should be weighed as such under **MCL 722.23(k)** and future evidentiary review.
- Defendant has obstructed portal access, medical transparency, and refused to engage in meaningful co-parenting.
- This violates MCL 722.23(j) and (k), both of which weigh heavily against her continued gatekeeping.

E. Ongoing Erosion of the Father-Son Relationship and Long-Term Harm

- The Defendant, Emily Watson, along with Lori Watson, Cody Watson, and Albert Watson, have persistently undermined Plaintiff's parental role and damaged the bond between Plaintiff and his son.
- Research from the **National Institutes of Health** and **peer-reviewed studies** confirm that parental alienation causes children to suffer long-term emotional, psychological, and developmental harm.
- Alienated children, particularly sons, are significantly more likely to develop **depression, anxiety, substance abuse disorders, and relationship difficulties** as adults ([NIH Study PMC8192594](#); [PMC9026878](#)).
- The **National Center for Education Statistics (NCES)** reports that children who are deprived of meaningful relationships with their fathers face cognitive and academic setbacks ([NCES Study](#)).
- This Court's continued limitation of Plaintiff's parenting time—based on false claims and an incomplete FOC report—facilitates further emotional damage.

IV. REQUEST FOR COURT ACTION

In light of the above, Plaintiff respectfully requests the following:

1. That the Court hold a **de novo evidentiary hearing** and allow full submission of all previously excluded evidence.

2. That Plaintiff's **parenting time be expanded** to include equal weekends, midweek video calls, and rotating holidays.
 3. That the Court issue an order affirming Plaintiff's **Established Custodial Environment** and restoring parenting time consistent with the child's prior lived experience and routine, which included equal or near-equal access to both parents.
 4. That sanctions be considered for willful obstruction of co-parenting duties by Defendant.
 5. That the Court take judicial notice of the **well-documented long-term harm** caused by parental alienation and act swiftly to protect the child's ongoing emotional development.
-

V. AFFIRMATIVE STATEMENT OF FUNDAMENTAL RIGHTS

Plaintiff asserts his fundamental rights as a biological and legal parent under both **MCL 722.27** and the **Fourteenth Amendment to the United States Constitution**, which protects a parent's liberty interest in the care, custody, and control of their child.

Courts are constitutionally required to protect the *ongoing* parent-child relationship from erosion, particularly when the State, via court orders or agency actions, indirectly contributes to the degradation of that relationship.

In **Troxel v. Granville, 530 U.S. 57 (2000)**, the U.S. Supreme Court emphasized that "the interest of parents in the care, custody, and control of their children is perhaps the oldest of the fundamental liberty interests."

Plaintiff respectfully requests that this de novo hearing be treated as a full and independent review, free from bias influenced by prior PPO proceedings, and urges the Court to intervene where statutory rights and constitutional protections are actively undermined.

Respectfully submitted,

/s/ Andrew J. Pigors

Andrew J. Pigors

1977 Whitehall Rd Lot 17

Muskegon, MI 49445

(231) 903-5690

andrewjpigors@gmail.com

Date: April 10, 2025

CERTIFICATE OF SERVICE

I, Andrew J. Pigors, certify that I am unable to personally serve Defendant due to the terms of a Personal Protection Order. Therefore, I request that service of this Brief in Support of De Novo Hearing be effectuated through the Court Clerk, Friend of the Court, or by process allowed under Michigan Court Rules.

/s/ Andrew J. Pigors

**STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
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ANDREW J. PIGORS,

Plaintiff,

v.

EMILY WATSON,

Defendant.

_____/

Case No: 2024-001507-DC

Hon. Jenny L. McNeill

VERIFIED STATEMENT OF HARM AND PATTERN OF PARENTAL ALIENATION

(To Be Attached to Motion for De Novo Hearing, Objection to FOC, or Request for Sanctions)

I, ANDREW J. PIGORS, being duly sworn, state under penalty of perjury that the following statements are true to the best of my knowledge, belief, and experience:

1. ESTABLISHED CUSTODIAL ENVIRONMENT

From November 2023 until March 26, 2024, I shared a week-on/week-off 50/50 custodial arrangement with the Defendant, EMILY WATSON. During this time, my son, Lincoln David Watson, benefited from a stable, nurturing, and developmentally enriched routine while in my care.

This arrangement constituted an Established Custodial Environment (ECE) under MCL 722.27(1)(c), built on consistent overnights, daily structure, bonding rituals, hands-on learning, and emotional security. At no point has any court found me unfit or presented any evidence justifying a reduction in my parenting time.

2. ABRUPT DISRUPTION, EXCLUSION, AND ALIENATION

The destruction of my parental relationship did not happen overnight—but it did accelerate with deliberate force starting in March 2024.

Emily Watson unilaterally removed Lincoln from my care without a court order on March 26, 2024, and withheld him for 37 days, until May 2. She again denied parenting time from October 20 to November 15, 2024—including Lincoln’s second birthday—while taking him on an international trip with her boyfriend. No communication, no offer for makeup time, no acknowledgment.

Since that point, Emily has:

- Refused to share medical or educational information.
- Prevented Lincoln from bringing personal items between homes.
- Weaponized the PPO to fabricate fear, despite documented video footage of peaceful, child-centered exchanges.
- Enforced complete silence—no photos, updates, or messages about Lincoln have ever been shared unprompted.

This is not parenting. This is a sustained effort to erase me from my son’s life—emotionally, physically, and psychologically. This is systemic alienation.

3. EROSION OF OUR BOND, EXCESSIVE GATEKEEPING, AND DEGRADATION OF FATHERHOOD

This situation has not only impacted Lincoln's emotional security, but it has fundamentally severed the father-son relationship that once defined his daily life. From November 2023 to March 2024, Lincoln

and I shared routines, affection, learning, discipline, laughter, and healing moments. Since the loss of our custodial parity, that bond has been systemically dismantled.

I have witnessed Lincoln's growing discomfort and disorientation. He exhibits:

- Severe separation anxiety during transitions.
- Repeated questions about why I can't pick him up more often.
- Frequent sadness, low energy, and a general withdrawal in behavior.
- Reports of frequent illness, bruising, and troubling statements such as, "Brother hit me," or, "i have two dads"
- Physical injuries that I documented and reported to the police, including visible marks, black eyes, his toes.

Despite these reports, I have received **no communication, clarification, or concern from Emily Watson**, who continues to block any follow-up regarding Lincoln's safety. During this time, Emily frequently leaves Lincoln in the daily care of her mother, Lori Watson, while she works. On other occasions, she transports Lincoln nearly two hours away to visit her boyfriend, Ron Berry, in a different city. These trips and caretaking substitutions were never discussed, coordinated, or disclosed. They are not in Lincoln's best interests and they function to exclude me, the child's father, from both presence and knowledge of his environment. I became aware of this travel pattern through publicly accessible information and a concerned mutual acquaintance—yet when I raised the issue, Emily accused me of stalking to silence my concern. This is not protective behavior; it is weaponized isolation.

Our relationship—once daily, warm, and foundational to Lincoln's sense of stability—has been reduced to fragmented biweekly visits under emotionally hostile conditions created by Emily's conduct. The damage is not theoretical; it is documented, visible, and deeply painful to both father and son. There is no justification for Emily's mother, brother, or boyfriend having more access and time with Lincoln than I do as his biological father.

This is not simply a legal dispute. This is the state-sanctioned erosion of a boy's relationship with the man who raises him to be safe, gentle, curious, and strong. And it is happening in plain view of this Court.

4. REQUEST FOR RELIEF

I submit this verified statement to supplement my formal Objection and Brief in Support of a De Novo Hearing. I respectfully request the following:

- Immediate restoration of expanded parenting time consistent with the prior 50/50 routine.
- Sanctions against Emily Watson for obstruction, misuse of legal process, and alienating behavior.
- Judicial recognition of the psychological and constitutional harm inflicted through the continued reduction of my role in Lincoln's life.

This pattern demonstrates a sustained campaign of isolation, obstruction, and psychological manipulation, designed to sever my relationship with my son and erase my presence from his life.

I remain committed to loving, supporting, and guiding Lincoln with compassion, structure, and consistency—if this Court is willing to act before the damage becomes irreversible.

I affirm the foregoing is true under penalty of perjury.

Respectfully submitted,

/s/ Andrew J. Pigors

Andrew J. Pigors

1977 Whitehall Rd Lot 17

Muskegon, MI 49445

(231) 903-5690

andrewjpigors@gmail.com

Date: April 10, 2025

NOTARY SECTION

Subscribed and sworn to before me on this ____ day of _____, 2025.

Notary Public, State of Michigan

My commission expires: _____

Acting in the County of: _____

CERTIFICATE OF SERVICE

I, Andrew J. Pigors, certify that I am unable to personally serve Defendant due to the existence of a court-issued Personal Protection Order. Accordingly, I have submitted this Verified Statement, along with supporting documentation, to the Muskegon County Circuit Court Clerk's Office and request lawful service to be effectuated in accordance with MCR 2.105 and MCR 3.203, or by any method the Court deems proper.

Date of Service: April 10, 2025

Method of Service Requested: Clerk-Facilitated or Court-Authorized Alternate Method

/s/ Andrew J. Pigors

Andrew J. Pigors